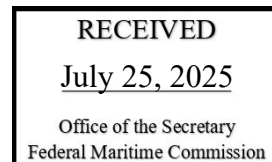




**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**



WAY2GO CARGO CORP.,
563 N Cleary Rd, 2
West Palm Beach, FL 33413

Complainant,

v.

Docket No: 25-14

OAK WAY CARGO, LLC
847 NW 119 Street, Ste. 205
Miami, Florida 33168

Please Serve:

Powel Management & Consulting, Inc.
847 NW 119 Street, Ste. 205
Miami, Florida 33168

Respondent.

_____ /

COMPLAINT

Complainant, WAY 2 GO CARGO CORP., a Florida Corporation (“Complainant” or “Way2Go”), by and through its undersigned counsel, hereby brings its Complaint against Respondent OAK WAY CARGO, LLC, a Florida limited liability Company (“Respondent” or “OAK”), and states as follows:

PARTIES

1. The Complainant is Way2Go, Florida-based international freight forwarding company federally licensed and regulated as an Ocean Transportation Intermediary (“OTI”) and a Non-Vessel Operating Common Carrier (“NVOCC”) by the Federal Maritime Commission (“FMC” or “Commission”) under License No. 027779. Way2Go’s principal place of business is located at 563 N Cleary Rd, 2, West Palm Beach, FL 33413.

2. Respondent OAK is a Florida limited liability company with its principal place of business located at 847 NW 119 Street, Suite 205, Miami, Florida 33168. OAK is not and has never been licensed by the FMC.

JURISDICTION

3. This Complaint is filed pursuant to the Shipping Act of 1984, as amended and codified at 46 U.S.C. §§ 41301 et seq. (the “Act”). The Complaint alleges violations of the Act by Respondent OAK, including, *inter alia*, that OAK has unlawfully held itself out and acted as an OTI and NVOCC without the required license in violation of 46 U.S.C. § 40901(a). The Complaint seeks both reparations and orders directing Respondent to comply with the requirements of the Act and FMC regulations in connection with the matters alleged herein.

FACTS

4. Complainant Way2Go is a licensed and bonded OTI, holding an OTI license number 027779 issued by the FMC. A copy of the Commission’s OTI List, as published on the FMC’s official website and reflecting Way2Go’s Commission License Number, is attached hereto as **Exhibit “A.”**

5. Way2Go is a Florida corporation that provides international freight forwarding services. Way2Go is co-owned by Ernani Ferraz (“Ferraz”), who holds 51% of the shares and serves as its President.

6. Ms. Nanoei Alves (“Nanoei”) currently serves as Vice President of Way2Go. Her husband, Mr. Raphael Alves (“Alves”), served as director of Way2Go until his resignation in April 2025.

7. At all times relevant, Ferraz maintained primary authority over licensing, regulatory, and financial matters for Way2Go.

8. In reliance on longstanding personal and professional trust, Ferraz delegated the day-to-day operations of Way2Go to Mr. Diego Santana (“Diego”), who served as a de facto Manager. Diego exercised wide control over its finances, client communications, and logistics operations—including the company’s subscription to ShipThis, a third-party logistics platform central to Way2Go’s operations.

9. Upon information and belief, in or around February 2025, Diego and Alves conspired to form a competing freight forwarding company, OAK, for the purpose of misappropriating Way2Go’s assets, clients, operational infrastructure, and FMC license.

10. OAK is not separately licensed by the Commission and has not been authorized by Way2Go to operate under its license. Nevertheless, OAK has been holding itself out as a licensed OTI by contracting with shippers, vendors, and freight carriers under Way2Go’s identity and regulatory credentials.

11. OAK also utilized Way2Go’s FMC license number and identity on shipping documentation, including but not limited to House Bills of Lading (“HBLs”), rate quotations, and carrier contracts—without Way2Go’s knowledge or consent.

12. In many cases, OAK concealed their misconduct by omitting Way2Go’s license number from shipping documentation to avoid detection. A true and correct copy of one such Combined Transport Bill of Lading, which does not include Way2Go’s license number, is attached hereto as **Exhibit “B.”**

13. OAK has also submitted an application for its own FMC license, which, upon information and belief, is currently pending before the Commission. A true and correct copy of OAK’s FMC license application, as published on the FMC’s official website, is attached hereto as **Exhibit “C.”**

14. On or about June 16, 2025, Ferraz formally reported these violations to the Commission via electronic correspondence. A true and correct copy of the June 16, 2025, correspondence is attached hereto as **Exhibit “D.”**

15. In furtherance of this scheme, OAK diverted proceeds rightfully owed to Way2Go into unauthorized bank accounts opened and controlled by Alves. One such account was held at Bank of America in the name of Way2Go without the knowledge or approval of Ferraz, the majority shareholder of Way2Go.

16. Since opening the unauthorized Bank of America account, OAK has instructed clients and vendors to remit payments for freight forwarding services to that account. As a result, revenues generated from operations conducted under Way2Go’s FMC license are being deposited into a bank account that Way2Go does not control.

17. Way2Go has been entirely excluded from receiving or overseeing these revenues. Despite its license being used on a daily basis to facilitate commercial transactions, Way2Go is not receiving any portion of the proceeds and has no access to the funds or records associated with the Bank of America account.

18. OAK also misappropriated and assumed control of Way2Go’s ShipThis account. Although the account was contractually tied to Way2Go, OAK unilaterally changed administrative access, locked Way2Go out of the platform, and began using it to manage OAK’s operations. Way2Go continued to pay the subscription fees while being denied access to its own logistical infrastructure and client records.

19. Way2Go only became aware of this ongoing fraud after being contacted by the Department of Homeland Security U.S. Customs and Border Protection Notice on behalf of a longstanding importer, Best Stone Imports LLC, regarding an unpaid customs duty on a shipment

falsely attributed to Way2Go. Upon investigation, Way2Go discovered that OAK was using its FMC license on documentation while deliberately omitting the license number from certain HBLs to evade detection. A true and correct copy of the Department of Homeland Security U.S. Customs and Border Protection Notice of Penalty is attached hereto as **Exhibit “E.”**

20. As a direct result of OAK’s conduct, Way2Go has suffered and continues to suffer ongoing and irreparable harm.

21. Unless enjoined by this Court, OAK will continue to use Way2Go’s FMC license, divert client relationships and revenues, and cause irreparable harm to Way2Go’s business, reputation, and standing within the regulated international shipping community.

COUNT I

22. Based on the foregoing allegations and other facts that will be established at a hearing, Respondent OAK has violated, and continues to violate, the Act, as amended, including 46 U.S.C. § 40901(a), by, *inter alia*:

- a. Holding itself out to the public as a licensed OTI and NVOCC, despite having no license issued by the FMC;
- b. Using the FMC license and regulatory credentials of Way2Go without its authorization, to conduct regulated freight forwarding operations including the issuance of HBLs and carrier negotiations;
- c. Entering into business arrangements with third parties—including shippers, consignees, and freight forwarders—under the false pretense of being duly authorized and licensed;

- d. Falsifying or omitting regulatory information from shipping documents—including the deliberate removal of Way2Go’s FMC license number from HBLs—to conceal its unauthorized operations and evade regulatory detection;
- e. Depositing revenues generated from unlicensed intermediary operations into a Bank of America account controlled by OAK, from which Way2Go is completely excluded, thereby misappropriating funds earned through misuse of Way2Go’s FMC license;
- f. Misappropriating and assuming control over Way2Go’s proprietary freight management platform, ShipThis, which was contractually and financially maintained by Way2Go, thereby locking Way2Go out of its own systems and causing disruption to its operations, loss of historical shipment data, and complete loss of access to client records; and
- g. Depriving Way2Go of its business relationships, industry goodwill, and commercial credibility, thereby resulting in lost revenues, business opportunities, and irreparable damage to its standing in the international freight forwarding and logistics community.

23. OAK’s actions have caused, and continue to cause, significant and irreparable harm to Way2Go, including lost customers, lost revenue, interference with commercial relationships, reputational damage, regulatory exposure, and the loss of business opportunities. OAK’s ongoing conduct has materially prejudiced Way2Go’s ability to operate in the lawful shipping marketplace and has eroded its standing in the regulated freight forwarding sector.

WHEREFORE, Complainant, WAY 2 GO CARGO CORP., prays that Respondent, OAK WAY CARGO, LLC, be required to answer the charges herein; that after due hearing, an order be

made commanding the Respondent: (1) to cease and desist from the above-stated violations of the Act including but not limited to the unauthorized operation as an OTI and misuse of Complainant's FMC license; (2) to establish and put in force such practices as the Commission determines to be lawful and reasonable; (3) award reparations to Complainant, including but not limited to compensatory damages, attorney's fees, costs, and pre- and post-judgment interest, in an amount to be determined by the Commission as just and proper; and (4) that such other and further order or orders be made as the Commission determines to be proper in the premises.

PLACE OF HEARING

As Complainant and Respondent are based out of Florida, Complainant requests a virtual hearing if possible.

STATEMENT REGARDING ALTERNATIVE DISPUTE RESOLUTION

The Complainant states that informal dispute resolution procedures were not used prior to filing the Complaint and the Complainant did not consult with the Commission Dispute Resolution Specialist about utilizing alternative dispute resolution ("ADR") under the Commission's ADR program.

Dated July 25, 2025

Respectfully submitted,

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District of Columbia Bar
No. 1617249

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VERIFICATION

STATE OF UTAH)

COUNTY OF UTAH)

BEFORE ME, the undersigned authority, a notary public,
duly commissioned and qualified within and for
UTAH, ETHAN CARRINGTON,
personally appeared ERNANI FERRAZ, the
PRESIDENT for WAY 2 GO CARGO
CORP., who having been duly sworn states that the facts
contained in the foregoing Complaint are true and correct.

Sign

ERNANI FERRAZ



Print Name

ETHAN CARRINGTON

Notary Public My Commission
Expires: 03-22-2029
Name (Printed or Stamped):